



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 26TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
JANUARY 27, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ABSENT: none

ORDINANCE NO. 05
Series of 2026

**“AN ORDINANCE MANDATING THE FREE USE OF ALL RURAL HEALTH UNIT (RHU)-CARMEN
VEHICLES FOR THE TRANSPORT OF PATIENTS TO DESIGNATED HOSPITALS AND HEALTH FACILITIES,
AND FOR OTHER RELATED PURPOSES”**

Author: Hon. Elvie U. Ohao

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance seeks to ensure timely and equitable access to medical care by mandating the free use of all Rural Health Unit (RHU)-Carmen vehicles for the transportation of patients to designated hospitals and health facilities. It addresses the urgent needs of indigent and vulnerable residents who face financial and logistical barriers in accessing healthcare, particularly during emergencies. By institutionalizing the free use of RHU vehicles, this Ordinance promotes public health, safeguard lives, and strengthens the delivery of basic health services in the Municipality.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the "FREE RHU PATIENT TRANSPORT ORDINANCE OF THE MUNICIPALITY OF CARMEN."

Section 2. DECLARATION OF POLICY- It is hereby declared the policy of the Municipality of Carmen to ensure free, equitable, and timely transport of patients requiring referral or specialized medical care, as part of its commitment to public health, social justice, and general welfare.

Section 3. COVERAGE- This Ordinance shall apply to all vehicles under the supervision, management, or operational control of the Rural Health Unit (RHU)-Carmen, including but not limited to ambulances, service vehicles, and other transport units designated for health services.

Section 4. FREE USE OF RHU VEHICLES FOR PATIENT TRANSPORT- All RHU-Carmen vehicles shall be used free of charge for the transport of patients from the Municipality of Carmen to the following hospitals and health facilities:

- a. Madrid District Hospital
- b. Adela Serra Ty Memorial Medical Center
- c. Hospitals in Surigao City
- d. Hospitals in Butuan City
- e. Hospitals in Davao City
- f. Hospitals in Cagayan de Oro City

This shall include emergency cases, referral cases, and other medically justified transport as determined by authorized health personnel.

Section 5. QUALIFIED BENEFICIARIES- The free transport service shall be available to:

- a. Residents of the Municipality of Carmen.
- b. Patients requiring emergency medical attention, hospital referral, or specialized treatment.
- c. Indigent, vulnerable, or financially challenged patients, without prejudice to other residents in need of medical transport.

Section 6. AUTHORIZATION AND PROCEDURES- The Municipal Health Officer (MHO), RHU personnel or their duly authorized representatives shall:

- a. Assess and approve requests for patient transport.
- b. Ensure that vehicle use is medically justified and properly documented.
- c. Established guidelines and schedules to ensure the efficient and equitable use of RHU vehicles.

Section 7. FUNDING AND OPERATIONAL EXPENSES- All expenses related to fuel, maintenance, driver allowances, and other operational costs for the implementation of this Ordinance shall be charged against the Municipal Government funds, subject to existing accounting and auditing rules and regulations.

Section 8. PROHIBITED ACTS- Any unauthorized use of RHU vehicles, misuse of free transport services, or violation of the guidelines issued pursuant to this Ordinance shall be subject to administrative sanctions in accordance with existing laws, rules and regulations. The RHU vehicles are strictly prohibited by any offices for any seminars.

Section 9. IMPLEMENTING RULES AND REGULATIONS (IRR)- The Municipal Health Office, in coordination with the Office of the Municipal Mayor, shall promulgate the necessary Implementing Rules and Regulations (IRR) within thirty (30) days from the effectivity of this Ordinance.

Section 10. SEPARABILITY CLAUSE- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall remain in full force and effect.

Section 11. REPEALING CLAUSE- All Ordinances, Resolutions, or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

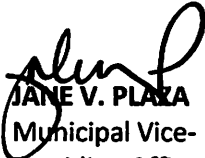
Section 12. EFFECTIVITY CLAUSE- This Ordinance shall take effect after its approval and compliance with the posting requirements under the Local Government Code of 1991.

ENACTED this 27th day of January, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
2-2-2026